

The Bihar Epidemic Diseases Rules, 1965

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State of Jharkhand - Act

The Bihar Epidemic Diseases Rules, 1965

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The Bihar Epidemic Diseases Rules, 1965

Rule THE-BIHAR-EPIDEMIC-DISEASES-RULES-1965 of 1965

Published on 31 July 1965

Commenced on 31 July 1965

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The Bihar Epidemic Diseases Rules, 1965

Published vide Notification No. 10/R1-1-5/65-2888 (10)-H, dated 31st July, 1965, Published in the Bihar Gazette (Extra Ordinary), dated 17 August, 1965

No. X/R1-1-5/65-2888 (10)-H, dated 31st July, 1965, Published in the Bihar Gazette (Extra Ordinary), dated 17 August, 1965. - In exercise of the powers conferred by Section 2-F of the Epidemic Diseases Act, 1897 (III of 1897) as amended by the Epidemic Diseases (Bihar Amendment) Act, 1960 (Bihar Act V of 1961) and as in force in the State of Bihar, the Governor of Bihar is pleased to make the following Rules the same having been previously published as required by subsection (1) of the said Section namely:-

1.

The Bihar Epidemic Diseases Rules, 1965-

(i)

These rules may be called the Bihar Epidemic Diseases Rules, 1965.

(ii)

They shall come into force at once.

2.

In these rules, unless there is anything repugnant in the subject or context:-

(a)

"Act" means the Epidemic Diseases Act, 1897 (III of 1897);

(b)

"Section" means a Section of the Act; and

(c)

all words and expressions used in these rules and not defined herein have the same meanings as are respectively assigned to them in the Act.

3.

After an order in writing requisitioning a vehicle is served by the requisitioning authority under Section 2B on the owner of such vehicle, or in the absence of the owner, on any other person who has for the time being the vehicle under his control, the owner or that person shall not remove or allow the vehicle or any part thereof to be removed or in any way damage the vehicle or permit it to be damaged so as to make the vehicle unserviceable, or less serviceable.

4.

If the owner of a vehicle, in anticipation of his vehicle being requisitioned under Section 2B intentionally removes the vehicle from the area visited by or threatened with, an outbreak of any dangerous epidemic disease, the requisitioning authority shall cause a notice in writing to be served on the owner of such vehicle to deliver possession of the vehicle to the requisitioning authority or to such other person and within such period as may be specified in the notice.

5.

After the release of the vehicle by the requisitioning authority, the owner or his authorised agent shall take delivery of the vehicle on or within such date and at such place as has been specified under sub-section (2) of Section 2D and then the owner or his authorised agent shall be entitled to move the State Government through the requisitioning authority for the amount of compensation to be fixed by agreement for the period for which the vehicle was requisitioned.

6.

The following procedure shall be followed by the arbitrator appointed under Section 2C:-

(i)

The arbitrator shall fix a date of hearing for which reasonable notice shall be given to the District Magistrate and the owner of the vehicle, take all such evidence as may be produced by them in support of their respective contentions and give them a reasonable opportunity of being heard before giving his award;

(ii)

If the amount of compensation offered by the State Government is held by the arbitrator to be appropriate, the entire cost of the proceedings before the arbitrator shall be borne by the person to be compensated and vice-versa;

(iii)

If the amount of compensation determined by the arbitrator is different from what is stated by the State Government and the person to be compensated, the cost of the proceedings shall be divided equally, between the State Government and such person; and

(iv)

The cost of proceedings under clause (ii) or (iii) which is to be borne by the person to be compensated shall be ordered to be deducted from the amount of compensation payable to such person.

7.

An expert or the assessor called upon to assist the arbitrator appointed under Section 2C shall be entitled to get a fee of one hundred rupees in each case, besides the usual travelling allowances to which he is entitled under the Bihar Travelling Allowance Rules.

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